



File No.: EXP202213395

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated 22/06/2023, and based on the following:

FACTS

FIRST: On 22/06/2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202213395, proceedings PD/00044/2023, originating from the appellant's letter dated 4/11/2022, in which it was agreed:

“FIRST: TO ACCEPT for formal reasons, the claim made by A.A.A. against MAGASAZ Y ASOCIADOS GESTORÍA ADMINISTRATIVA, S.L.P. regarding the rights of access and opposition. However, it is not appropriate to issue a new certification by said entity, as the response was issued late, and no additional actions are required from the responsible party.”

SECOND: The resolution now being appealed was duly notified to the appellant on 24/07/2023, as recorded in the acknowledgment of receipt in the file.

THIRD: The appellant submitted on 23/08/2023 to this Spanish Agency for Data Protection, a recourse for reconsideration, proceedings RR/00619/2023, in which the following is stated:

In their sole argument titled: “concurrence of the opposition reason contemplated in article 6.1 f) of the GDPR,” they state:

- The AEPD erroneously considers that there is a contractual relationship between MAGASAZ Y ASOCIADOS GESTORÍA ADMINISTRATIVA, SLP, and the appellant or the Community of Goods AyJ (...) “and that for this reason, it has understood that, in the present case, the claimant has not justified any reason for opposition.”
- They refer to their “allegations” to reiterate that the aforementioned entity was commissioned to present the taxes of the CB exclusively by one of the partners, their sister: B.B.B., who is the one with whom the entity has a contractual relationship, and who has always paid the fees.
- They believe that due to their lack of contractual relationship with Gestoría MAGASAZ, the reason for opposition in article 6.1.f) of the GDPR should be considered justified, as provided in article 21.1 of the same, since said entity continues to process their data without having obtained their consent, “even after this party's express opposition,” and they consider that “MAGASAZ Y ASOCIADOS GESTORÍA ADMINISTRATIVA SLP should be required to cease processing their data, due to the exercise of their right of opposition.”

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It should be noted that, in the claim, the appellant indicated:

- Their name and surname are part of the CB of which the GESTORÍA, as data processors of the personal data concerning them that are in their possession, has been presenting tax declarations,
- They have never consented to their sister replacing the gestoría that previously handled those functions,
- “I formally communicate my opposition to the continued processing of my personal data, therefore, they must refrain from processing any personal data of mine and, consequently, from presenting any tax declaration of the Community of Goods.”

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of article 123 of Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP considering that the entity continues to

process their personal data) and article 48.1 of Organic Law 3/2018, of 5/12, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

The appellant is part of a Community of Goods along with their sister in equal parts. In their claim, they indicate that the Gestoría, as the “data processor,” processes personal data that are in their possession regarding the CB.

They specify:

- a) Accounting information of the CB provided by B.B.B. (“Excel files for invoice records and supporting invoices”).
- b) A copy of all VAT declarations submitted for the CB since the beginning of their management (last quarter of the 2019 fiscal year).
- c) Exercise of the right of opposition to the continued processing of their personal data.
- d) They provided a copy of a burofax addressed to the Gestoría on 13/07/2022, delivered the following day.

They add that “I have never consented to my sister replacing the gestoría that previously handled these functions.”

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Thus, it is the appellant herself who admits that her sister, the other 50% of the CB, entered into an agreement with this Management Company, with which she did not agree.

Along with her claim, the appellant submitted a copy of the contract for the establishment of the CB dated 10/07/2002.

In its SECOND section, it states that the corporate purpose of the CB will be the exploitation through the leasing of inherited real estate, of which they are owners.

In its FIFTH section, it states that “The reason for its foundation is the joint taxation of its partners in relation to the taxes generated by the income obtained from the exploitation of the inherited properties.”

In its SIXTH section, it states that “The representation and administration of the common assets shall correspond jointly to the partners equally, with the CB being liable for the obligations incurred in its name by any of them. In case of disagreement in the administration or management of the affairs of the CB, an arbitrator shall be mutually agreed upon to resolve the existing discrepancies...”

In its NINTH section, it indicates that: “In all matters not expressly agreed upon, the CB shall be governed by the provisions of Title III of Book II of the Civil Code.”

-For its part, in addition to what is noted in the resolution being appealed, in the letter from the Management Company dated 9/03/2023, it states that it received the professional assignment from B.B.B., sister of the appellant, to “file her personal taxes and those corresponding to the CB of which she is a common partner and joint administrator, in order to carry out an internal control of expenses and income of the CB by B.B.B.”

Additionally, it provides:

- a) A letter signed by B.B.B., dated 1/03/2023, in which she states that “she authorizes the Management Company” to process and use her data, as the owner and partner of 50% of the CB. “The purpose is for the forms and models that must be submitted, whether in an informative manner or in an executive and fiscal manner for settlement, to be prepared by the management company, considering that they only affect the environment of the CB, and in any case, the processing of personal data of the partner B.B.B. is authorized exclusively.”

It also refers to the management carried out by the previous Manager and the unavoidable tax commitments that the CB must face.

- b) A copy of an email dated 6/03/2023 to the appellant stating that it responds to the request for the exercise of rights received in July 2022, providing a copy of the documentation that the Management Company has in its possession related to the CB, “of which you are a joint administrator.”

Among the copies of the documents: VAT self-assessment, model 303 (quarterly fractional payment of VAT), for the year 2022, the CB is listed, and a bank account statement showing the two users of the same, and statements with data and movements of the holder, the CB.

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III

Regarding the reasons for challenging the resolution, the appellant refers exclusively to the right of opposition, and based on the alleged legitimate interest inferred from Article 6.1(f) of the GDPR, which the resolution does not mention, although it does cite the content of Article 21 of the GDPR.

The appellant adds that the AEPD erroneously considers that there is a contractual relationship between the Management Company and the appellant or the Community of Goods, and that for this reason, the appellant has not justified that any grounds for opposition exist.

In this regard, it is worth mentioning the appellant's own acknowledgment of the differences with her sister, the other participant in the Community of Goods, who contracted the claimed Management Company, so it is not untrue that the Management Company has a relationship with the Community of Goods. In fact, the aforementioned Management Company has been managing it since the last quarter of the 2019 fiscal year (literal description of the facts of the complaint), exercising the right by the claimed party on 07/13/2022.

Included in Chapter III of the GDPR, relating to the "rights of the data subject," the GDPR states in its Article 21: "Right of opposition

1. The data subject shall have the right to object at any time, on grounds relating to his or her particular situation, to the processing of personal data concerning him or her which is based on the provisions of Article 6(1)(e) or (f), including profiling based on those provisions. The controller shall cease to process the personal data unless it demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or for the establishment, exercise, or defense of legal claims."

If the opposition were to be upheld, its effect would be that the processing carried out by the controller could no longer refer to those data.

In relation to the statements made by the appellant, the following should be noted:

The claimed party responded to the aforementioned right of opposition in the file, in its hearing procedure, stating that the function was performed for the Community of Goods, that it had no documentation in deposit, indicating that the partners could download the submitted tax documents from the AEAT.

Furthermore, it is stated in the resolution that it sent the appellant a "list of bank transactions from the Community of Goods account, and the only quarterly declarations filed (models 303 and 184 - informative declaration of entities under the income attribution regime - fiscal year 2022), indicating that any of the co-partners has full access to this documentation, as it is information that they themselves manage."

Conversely, in response to the allegations presented by the MANAGEMENT COMPANY, the appellant stated that the claimed party is processing her personal data without the required consent and despite her express and repeated opposition, and that the function of tax filing necessarily involves the processing of her data, as she is also a participant in that Community of Goods.

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In the sixth legal basis of the contested resolution, it is indicated regarding the right of opposition:

"In this case, it is not observed that the complaining party has justified any reason to consider the

opposition. Notwithstanding the above, once the claimed party was granted a hearing, it sent the complaining party an email indicating that at no time have they made use of her personal data '(...) in fact, this Management Company does not have them.'"

Consequently, it is appropriate to uphold the complaint on formal grounds for having responded belatedly.

IV

Examining the appeal for reconsideration presented by the appellant, it should be noted that it is the Community of Goods for which the MANAGEMENT COMPANY, as the data processor, carries out its tax declarations to the AEAT on its behalf.

The GDPR states in its Article 4:

"(7) 'data controller' or 'controller': the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its designation may be laid down by the law of the Union or of the Member States;"

(...)

"(8) 'data processor' or 'processor': the natural or legal person, public authority, service, or other body that processes personal data on behalf of the controller;"

This Community of Goods is something different from each of its components, as the Community of Goods can, from the outset, be subject to obligations, among others, tax and fiscal obligations, and can be considered for the purposes of compliance with such obligations as a data controller.

The processing of data carried out by this Community of Goods since its establishment in 2002 is due to the exploitation of the rental of inherited real estate by the appellant and her sister, so the filing of such tax declarations is due to the fulfillment of a legal obligation of the Community of Goods, which could be harmed if these documents were not filed.

The fact that it does so through the MANAGEMENT COMPANY as a data processor, despite the differences between the members of this Community of Goods, does not prevent the data from being processed on behalf of this Community of Goods, which is the one bound to the AEAT under whose name the documents are filed.

Thus, it is not appropriate to consider the right of opposition, based on:

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- It would not be possible to require the GESTORÍA to address the right to object to the processing of data for tax purposes, as it is not the one that decides on the purposes and means of the processing of the CB. The exercise in this case would correspond to the data controller, the CB, not to the GESTORÍA. The obligation of the processor consists of assisting the controller so that it can fulfill its obligation to respond to requests aimed at exercising the rights of the data subjects, but in this case, the GESTORÍA does not process data, as stated in the contested resolution, so if no data is processed, there can be no right to object due to the absence of processing.

- In this case, the context in which the right to object to the processing of the appellant's own data is requested is based on the agreement signed between both parties (the appellant and the sister in 2002 to establish a CB), the obligations that said CB must fulfill, and the joint liability of its partners. For this case, the data that the GESTORÍA processes on behalf of the CB is limited to the submission of tax returns, in compliance with a legal obligation.

It is concluded in this regard that there would be no compliance with Article 21 of the GDPR as a cause that would enable the exercise of that right in this case.

Thus, the appellant does not provide new or relevant facts or legal arguments that would allow for reconsideration of the validity of the contested resolution, so it is appropriate to agree to its dismissal.

V

Due to reasons related to the functioning of the administrative body, therefore not attributable to the

appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of Article 24 of Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time that has passed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Having seen the cited precepts and others of general application,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on 22/06/2023, in file EXP202213395.

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SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of 13/07, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of the aforementioned legal text.

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